

or made available under this or prior Agreements between us relating to or arising from any aspect of your use of the Connected Services, Connected Service Systems, Service Plans, the Vehicle or access of the sites. Notwithstanding the foregoing, either party may bring an individual action in small claims court. You agree that, by entering into this Agreement, you and Hyundai are each waiving the right to a trial by jury or to participate in a class or representative action to the maximum extent permitted by law. ...

(Rao Dec. at Ex. 2.)

Although this arbitration provision purports to cover any and all disputes between the parties regarding “the Vehicle,” the scope of an arbitration clause “ ‘turns on whether the ... claims are “rooted” in the contractual relationship between the parties....’ ” (*Ahern v. Asset Management Consultants, Inc.* (2022) 74 Cal.App.5th 675, 692.) To be arbitrable, the subject claims must have their “roots” in the relationship between the parties that was created by the contract containing the arbitration provision. (*Id.* at pp. 692-693.) “[E]ven under a very broad arbitration provision, such as ‘any controversy or claim arising out of or relating to this agreement,’ ” the subject claims must “ ‘ “have their roots in the relationship between the parties which was created by the contract” ’ before they can be deemed to fall within the scope of the arbitration provision.” (*Rice v. Downs* (2016) 248 Cal.App.4th 175, 188.)

Here, the CSA governs the provision of “Connected Services,” the wireless/remote technology/roadside assistance services received as part of plaintiff’s enrollment in a “Connected Services” subscription. (Rao Dec. at Ex. 2.) The complaint in this case alleges the vehicle contained defects and nonconformities to warranty. (See Complaint.) The “Connected Services” are not at issue in this case and plaintiff’s claims do not arise out of the relationship created by the CSA. As such, the arbitration agreement in the CSA does not encompass plaintiff’s claims. (*Ahern v. Asset Management Consultants, Inc.*, 74 Cal.App.5th at p. 692; *Rice v. Downs*, *supra*, 248 Cal.App.4th at p. 188.)

Accordingly, the motion is denied.

Plaintiff shall give notice of this ruling.

5	Walsh vs. Arzetti	TENTATIVE RULING: <u>Motion to Compel Arbitration</u> Defendants Alex Arzetti and Melissa Alumirano move to compel Plaintiffs Andrew Walsh and Mary Ann Walsh to arbitrate their claims against Defendants and stay this action pending completion of arbitration. For the following reasons, the unopposed motion is GRANTED. Plaintiffs allege Defendants breached a “Buyer’s Exclusive Representation Agreement” (the “Agreement”) by purchasing property in July 2020 without paying a commission. The Agreement contains an arbitration provision: ARBITRATION OF DISPUTES: (1) Buyer and Broker agree that any dispute or claim in law or equity arising between them regarding the obligation to pay compensation under this Agreement, which is not settled through mediation, shall be decided by neutral, binding arbitration, including and subject to paragraph 9B(2) below. The arbitrator shall be a retired judge or justice, or an attorney with at least five years of residential real estate law experience, unless the parties mutually agree to a different arbitrator, who shall render an award in accordance with substantive California law. The parties shall have the right to discovery in accordance with Code of Civil Procedure §1283.05. In all other respects, the arbitration shall be conducted in accordance with Title 9 of Part III, of the California Code of Civil Procedure. Judgment upon the award of the arbitrator(s) may be entered in any court having jurisdiction. Interpretation of this agreement to arbitrate shall be governed by the Federal Arbitration Act. (2) EXCLUSIONS FROM MEDIATION AND ARBITRATION: The following matters are excluded from mediation and arbitration: (i) a judicial or non-judicial foreclosure or other action or proceeding to enforce a deed of trust, mortgage or installment land sale contract as defined in Civil Code §2985; (ii) an unlawful detainer action; (iii) the filing or enforcement of a mechanic’s lien; and (iv) any matter that is within the jurisdiction of a probate, small claims or bankruptcy court. The filing of a court action to enable the recording of a notice of pending action, for order of attachment, receivership, injunction, or other provisional remedies, shall not constitute a waiver of the mediation and arbitration provisions.
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“NOTICE: BY INITIALING IN THE SPACE BELOW YOU ARE AGREEING TO HAVE ANY DISPUTE ARISING OUT OF THE MATTERS INCLUDED IN THE 'ARBITRATION OF DISPUTES' PROVISION DECIDED BY NEUTRAL ARBITRATION AS PROVIDED BY CALIFORNIA LAW. YOU ARE GIVING UP ANY RIGHTS YOU MIGHT POSSESS TO HAVE THE DISPUTE LITIGATED IN A COURT OR JURY TRIAL. BY INITIALING IN THE SPACE BELOW YOU ARE GIVING UP YOUR JUDICIAL RIGHTS TO DISCOVERY AND APPEAL, UNLESS THOSE RIGHTS ARE SPECIFICALLY INCLUDED IN THE 'ARBITRATION OF DISPUTES' PROVISION. IF YOU REFUSE TO SUBMIT TO ARBITRATION AFTER AGREEING TO THIS PROVISION, YOU MAY BE COMPELLED TO ARBITRATE UNDER THE AUTHORITY OF THE CALIFORNIA CODE OF CIVIL PROCEDURE. YOUR AGREEMENT TO THIS ARBITRATION PROVISION IS VOLUNTARY.”

“WE HAVE READ AND UNDERSTAND THE FOREGOING AND AGREE TO SUBMIT DISPUTES ARISING OUT OF THE MATTERS INCLUDED IN THE ‘ARBITRATION OF DISPUTES’ PROVISION TO NEUTRAL ARBITRATION.”

(Complaint, Ex. A.)

Federal Arbitration Act

The Federal Arbitration Act (“FAA”), which includes both procedural and substantive provisions, governs agreements involving interstate commerce. The Agreement at issue in this matter expressly states that the FAA applies. (*Victrola 89, LLC v. Jaman Properties 8 LLC* (2020) 46 Cal.App.5th 337, 355.)

The FAA states that written arbitration agreements “shall be valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract.” (9 U.S.C. § 2.) The Supreme Court has described this provision as reflecting both a “liberal federal policy favoring arbitration,” and the “fundamental principle that arbitration is a matter of contract.” (*AT & T Mobility LLC v. Concepcion* (2011) 563 U.S. 333.) The FAA permits agreements to arbitrate to be invalidated by “generally applicable contract defenses, such as fraud, duress, or unconscionability.” (*Id.*) When deciding whether a valid arbitration agreement exists, courts generally apply “ordinary state-law principles that govern

		the formation of contracts.” (<i>First Options of Chicago, Inc. v. Kaplan</i> (1995) 514 U.S. 938, 944.) On a motion to compel arbitration, the court’s role is limited to deciding: “(1) whether there is an agreement to arbitrate between the parties; and (2) whether the agreement covers the dispute.” (<i>Brennan v. Opus Bank</i> (9th Cir. 2015) 796 F.3d 1125, 1130.) If these conditions are satisfied, the court is without discretion to deny the motion and must compel arbitration. (9 U.S.C. § 4; <i>Dean Witter Reynolds, Inc. v. Byrd</i> (1985) 470 U.S. 213, 218 [“By its terms, the [FAA] leaves no place for the exercise of discretion by a district court, but instead mandates that district courts shall direct the parties to proceed to arbitration.”].) “[T]he party resisting arbitration bears the burden of proving that the claims at issue are unsuitable for arbitration.” (<i>Green Tree Fin. Corp. v. Randolph</i> (2000) 531 U.S. 79, 91.) <u>The Agreement Covers the Claim Asserted by Plaintiffs</u> Defendants have met their burden of demonstrating the existence of a valid arbitration agreement with Plaintiff decedent. (Complaint, Ex. A.) In covering “any dispute or claim in law or equity arising between them regarding the obligation to pay compensation under this Agreement,” the Agreement covers Plaintiffs’ claims against Defendants. Accordingly, the Motion to Compel Arbitration is GRANTED, and the action is STAYED pending the completion of arbitration. (Code Civ. Proc. § 1281.4.) An ADR Review Hearing is set for 9:00 a.m. on October 20, 2026, in Department N16. Defendants shall give notice of this ruling.
6	Activate Clean Energy, LLC vs. DMX Engineering, LLC	TENTATIVE RULING: <u>Motion for Pro Hac Vice Admission</u> Attorney Dwyer Arce moves for pro hac vice admission. For the following reasons, the motion is GRANTED. Foreign attorney Arce’s application is verified. It properly sets forth the applicant’s residence and office addresses and California counsel’s contact information. It states the applicant’s courts and